gaining souls. "He opened his mouth and taught them, saying, Blessed are the poor in spirit, for theirs is the kingdom of heaven. Blessed are the meek, for they shall inherit the earth. Blessed are the merciful, for they shall obtain mercy. Blessed are the peacemakers, for they shall be called the children of God. Blessed are they which are persecuted (not they who persecute) for righteousness' sake, for theirs is the kingdom of heaven. Blessed are ye when men shall revile you, and persecute you, and shall say all manner of evil against you falsely for my sake. Rejoice, and be exceeding glad, for great is your reward in heaven, for so persecuted they the prophets which were before you."—Matt. v., 2—12. They might also find that man's power to curse effectually is a mere imagination. "The curse causeless shall not come," says Solomon, Prov. xxvi. 2.* "On that day they read in the book of Moses, in the audience of the people, and therein was found written that the Amorite and the Moabite should not come into the congregation of God for ever, because they met not the children of Israel with bread and with water, but hired Balaam against them, that he would curse them; howbeit our God *turned the curse into a blessing,*" "because the Lord thy God loved thee."—Nehemiah xiii. 1, and Deut. xxiii. 5. They might further find that there are times when God's judgments make desolate the earth, as well for the *priests* as the people. "Behold the Lord maketh the earth empty, and maketh it waste, and scattereth abroad the inhabitants thereof. And it shall be as with the people, so with the priest; as with the servant, so with his master; as with the buyer, so with the seller; as with the lender, so with the borrower; the land shall be utterly emptied, and utterly spoiled, for the Lord hath spoken this word. The earth also is defiled under the inhabitants thereof; therefore hath the curse devoured the earth, and they that dwell therein are desolate, and few men left."†—Isaiah xxiv. 1—6. And again—"The Lord could no longer bear, because of the evil of your doings, and because of the abominations which ye have committed; therefore is your land a desolation, and an astonishment, and a curse, without an inhabitant, as at this day."—Jer. xliv. 22. If they read further they might find, not that the priests were privileged to curse, but that even their blessings might become cursings, if they did not hear and obey his commands. "And now, O ye priests, this commandment is for you. If ye will not hear, and if ye will not lay it to heart, to give glory unto my name, saith the Lord of Hosts, I will even send a curse upon you, and I will curse your blessings; yea, I have cursed them already, because ye do not lay it to heart."—Mal. ii. 1. David, in the 109th Psalm, v. 28, gives, at any rate, advice which Catholic laymen will do well to follow, whatever course the priesthood may take. "Let them curse, but bless thou:" "When they arise, let them be ashamed. I will praise the Lord among the multitude, for he shall stand at the right hand of the poor, to save him from those that *condemn his soul.*" We, for our parts, shall endeavour to follow the commands of Christ and his holy Apostles. "Bless them that curse you."—Matt. v. 44; and Luke vi. 28. "Bless them which persecute you; bless and curse not."—Rom. xii. 14. "I call heaven and earth to record this day against you" (says Moses, in Deut. xxx.), "that I have set before you life and death, blessing and cursing; therefore choose life, that both thou and thy seed may live. That thou mayest love the Lord thy God, and obey his voice. And the Lord thy God will make thee plenteous in every work of thy hand, in the fruit of thy body, and in the fruit of thy cattle, and in the fruit of thy land, for good; for the Lord will again rejoice over thee for good, as he rejoiced over thy fathers. If thou shalt hearken unto the voice of the Lord thy God, to keep his commandments and his statutes, which are *written in his book* of the law, and if thou turn unto the Lord thy God, with all thine heart and with all thy soul."—Deut. xxx. 9, 10, 19, 20. On God's conditions, and on these alone, we fervently believe there may yet be good in store for our beloved, though desolate and unhappy country. That the law of man agrees with the law of God in this matter, will appear from the next article.

RESULTS OF EXCOMMUNICATION.

On the 20th March, 1846, a trial took place at the Antrim assizes, at Carrickfergus. An action was brought by a Roman Catholic, of the name of Charles M'Loughlin, against the Rev. Luke Walsh, a Roman Catholic priest in the county of Antrim. The legal declaration contained two counts—first, that the plaintiff was a parishioner of Culfreightrin, and the defendant parish priest of that parish; and that the plaintiff, as a teacher of the Scriptures in the Irish language, and owner of a mill, had lived on terms of intimacy with, and possessed the good opinion of his neighbours, and made gain by his mill; and the defendant, intending to injure the plaintiff, &c., on the 11th August, 1844, during divine service in a Roman Catholic chapel, pronounced the plaintiff excommunicated, meaning thereby, that the plaintiff was unworthy of the general society of the parishioners, and that they should not have any dealings with him. The second count set out the words in which the excommunication was alleged to be made—viz., "My curse and God's curse on Charles M'Loughlin, Hugh Shiels, and John M'Cay, and on all who will work with, and hold any communication with the accursed teachers of the Irish Bible." Culfreightrin is in the glens of Antrim; and Charles M'Loughlin, the miller there, was brought up as a member of the Roman Catholic Church. He was better educated than most of his neighbours, for he could read and speak the Irish language well and grammatically. He was a man of good character, and of honest and industrious habits. About the year 1843, he became an Irish Scripture teacher, and he taught many persons to read the Word of God in the Irish language. Father Walsh set about forbidding and preventing him. He tried to persuade M'Loughlin to give up teaching, but this would not do; so he threatened that he would curse him from the altar, and tell his hearers not to speak to him. He said he would put man, woman, and child from speaking to him; that they should not walk on the same side of the road with him; that he would not get a single hand's turn to do; and that he would leave his mill as dry as the road; and that this would be intimated in the chapel; and that the plaintiff would be cursed by "bell, book, and candle."

On the 11th August, 1844, the priest did as he had threatened; and all the consequences that he had spoken of actually happened. All these facts were proved to the satisfaction of judge and jury, although Father Walsh was in court, and somewhat alarmed the witnesses; but there was no hiding the truth, and the jury gave their verdict in favour of the miller, and against the priest. They fixed the damages at seventy pounds, which the priest was to pay, as well as all the costs of the action.

Father Walsh appealed to the Court of Queen's Bench, in Dublin, and by this means he put off the payment of the money, and tried to cover his defeat; but after putting it off as long as he could, and letting the public attention turn to something else, the priest has quietly paid the seventy pounds damages and all the costs, which amounted to above a hundred more. This is a very important fact: and every Irish Roman Catholic may know, that the law of the land will protect him from the consequences of the cursing of the priest, whenever the priest dares to use a curse to hinder a man from reading that by which man lives—that is, every Word of God. —*See the Report of the Case in 10th vol. Irish Law Reports, p.* 19.

LETTER OF POPE PIUS IX.

The following letter was written by the present Pope, not quite three years since, to all bishops in communion with the See of Rome. Its interest has not since diminished, for the letter itself promises further proceedings on the same subject, which have not yet appeared.

We consider this letter one of the most important documents which has issued from the Roman See for centuries past. The subject is grave, and full of difficulty; the letter purposes to make a decision pregnant with important consequences to the Church of Rome. Such a question should be most deliberately considered; and we are, therefore, not surprised that three years should have elapsed without a report from those to whom the matter has been referred by the Pope.

The reason which induces us to lay this letter before the Catholic laity is this: in a matter of such grave importance, the Pope states that he is anxious to learn, not merely the opinion of the bishops and the clergy, but the sentiments and feelings of the laity. We conceive that this desire does honour to the Pope; that it is suitable to the character in which he had the courage to stand up, in the commencement of his Pontificate, as THE GREATEST REFORMER IN EUROPE. And we know not how we can better commence our office of providing suitable and safe subjects of thought for Catholic laymen, than by calling their attention to an important subject, on which the great head of the Roman Church desires to know their opinions. Surely, when the Pope wishes to know the sentiments of the laity on any subject, it is their bounden duty to consider that subject, and form some opinion which may be expressed to him as theirs.

To aid them in forming such an opinion, we shall, in a future number of THE LAYMAN, publish some of the most important decrees which have formerly been made on this subject by popes and councils. At the present, we shall only say a few words on the grave importance and difficulty of the question.

The question whether the Blessed Virgin Mary, at or after the moment of her conception in the womb of her mother, was subject to original sin, or whether she was free from it, first arose in the Church of Rome about seven hundred years ago. Now, this letter from the present Pope tells us that this question has never yet been settled by the Apostolic See. It is clear that such a state of things is injurious to the Roman Church. It affords Protestants a ready argument against the advantage, or even the existence of an infallible judge, always able and always willing to settle all controversies as they arise. It is a favourite topic with their controversial preachers, and some of their churches at this very time are actually resounding with it. It is clear that such a state of things cannot continue when laymen begin to think. If the infallible judge do not decide such questions, men will begin to ask what he is for. This, no doubt, is the reason why Pius IX. now wishes to decide it.

And yet it is a grave question, whether the inconvenience and the mischief of attempting now to decide this matter may not be greater still. It has ever as yet been held among Catholics, that the office of TRADITION has been to hand down revealed articles of faith from the times of the apostles themselves; and that whatever has not been brought down by tradition from the apostles themselves, is no part of "the faith once delivered to the saints," and cannot now be an article of the Catholic faith. Now, from the Pope's statement that this question has never yet been decided by the Apostolic See, it follows that it is not now, and never has been, an article of the Catholic faith. But if the immaculate conception of the Virgin should now be decided in the affirmative (and the Pope's letter seems to contemplate no other decision), it will become an article of faith in the Roman Church all over the world. We do not see how, in such a case, the doctrine or the office of tradition can be maintained, or how it could then be asserted, that the faith of the Roman Church continues the same in all its parts, as it has been from the times of the Apostles. How shall any one then answer the Protestants when they will turn round and say (as they will), "Here is a part of your faith which was not an article of faith in your own Church yesterday, and it is an article of your faith to-day; is this faith as old as the times of the Apostles?" This is the more important, as the greatest of the Fathers, and of Roman Catholic divines in modern times, have not scrupled to affirm, that the Church of Rome has no tradition upon this subject. So said St. Bernard, the last of the Fathers; and so says Bishop Milner, an English Roman Catholic Bishop, about 35 years ago, in his "End of Controversy."

We look on this with the utmost anxiety, in connection with the recent appointment of Dr. Newman, a distinguished convert from the English Church, to the office of rector of the new Catholic university. It is well known that Dr. Newman, since his conversion, has published a book, in which he not only admits, but openly avows, that the faith of the Roman Church of the present day is *not* the same as that faith which the apostles delivered to the saints, and that it is hopeless to attempt to defend it as such. We look on such admissions as full of danger. If such is to be the teaching of the new Catholic university, and if such teaching is to be countenanced by decisions of the See of Rome, we see not how the controversy with Protestants is to be sustained, or how Catholics are to be kept in that faith which they have always hitherto been taught to look upon as precisely identical with the faith which the blessed apostles, St. Peter and St. Paul, once delivered to the Church.

On the one hand, we have the great scandal of leaving so important a question still unsettled, in a Church which possesses an infallible judge, whose office it is to settle all controversies as they arise. On the other hand, we see the great and appalling dangers which beset a decision, such as the Pope's letter contemplates. We no longer wonder at the three years of deliberation which have followed that letter, without any other step having been taken; and since the Pope has asked to be informed of the opinions of the laity on so grave a question, we urge upon them, while it is yet time, to make it a serious subject of thought. We shall, in our next number, give materials to enable them to do so. We desire them to take this article as an instance of the caution we shall use in submitting proper subjects for their consideration; and of the calm, dispassionate, and practical manner in which we shall treat those subjects; and, with these observations we commend the Pope's letter to the earnest consideration of laymen.

PIUS P.P., IX.

"Venerable brethren—health and apostolical benediction. When raised at the first, certainly by no merits of our own, but by the secret counsel of Divine Providence, to the sublime chair of the Prince of the Apostles, we undertook the government of the whole Church, we feel the greatest consolation, venerable brethren, when we know in what manner, in the pontificate of our predecessor, Gregory the Sixteenth, of venerable memory, an ardent desire had wonderfully revived in the Catholic world, that it should, at length, be decreed by the Apostolic See, by a solemn judgment, that the most holy Mother of God, the most loving mother of us all, the immaculate Virgin Mary, was conceived without the original stain; which most pious desire, the petitions presented as well to the said predecessor of ours as to ourselves continually, most clearly

* The note to the Douay Bible, published with the authority of the Most Rev. W. Crolly, D.D., R.C. Archbishop of Armagh, and the Right Rev. Cornelius Denvir, D.D., R.C. Bishop of Down and Connor, makes the meaning still more plain—"The meaning is, that a curse uttered without cause, shall do no harm to the person that is cursed, but will return upon him that curseth, as whithersoever a bird flies it returns to its own nest."

† The famine, and the tide of emigration, have well nigh fulfilled this prophecy in hapless Ireland.

and openly prove and demonstrate; in which the most distinguished prelates, the most illustrious colleges of the Canons, and the religious establishments, among whom is the renowned order of preaching Friars, have, with rivalry, solicited that in the sacred liturgy, especially in the preface of the Mass of the conception of the most Blessed Virgin, it should be lawful to openly and publicly pronounce and add that word 'Immaculate.' To which petitions it was agreed, with the utmost readiness, by our predecessor and ourselves. It has also come to pass, venerable brethren, that very many of your own order have not ceased to address your letters to our predecessor and to us, in which they have sought, with repeated petitions and redoubled desires, that we should be willing to define, as a doctrine of the Catholic Church, that the conception of the Blessed Virgin Mary was altogether immaculate and wholly free from all stain of original sin. Nor, indeed, were there wanting, even in this our age, men excelling in capacity, virtue, piety, doctrine, who, by their learned and laborious writings of this kind, have so illustrated this subject, and most pious opinion, that many persons wonder why this honour has not yet been decreed to the most Holy Virgin by the Church and the Apostolic See: which (honour) the common piety of the faithful so much desires should be attributed to that Virgin, by the solemn judgment and authority of that same Church and See. Indeed, wishes of this kind have been most pleasing and agreeable to us, who, even from our most tender years, have held nothing preferable, nothing more dear than to worship the most Blessed Virgin Mary with a singular piety and service, and with the most inward affection of our heart, and to perform those things which appear to be able to conduce to the greater glory of the Virgin herself, and to procure her praise, and to promote her worship. Wherefore, even from the very beginning of our pontificate, we seriously directed our cares and thoughts, even with the greatest alacrity, towards an affair of so great importance, and have not omitted to offer our most humble and fervent prayers to the best and greatest God, that he may be willing to illuminate our mind with the light of his celestial grace, by which we may be able to learn what should be done by us in this affair. We also endeavour to remain in this hope most strongly, that the Blessed Virgin, 'who has raised the highest pitch of merit above all quires of angels, even to the throne of God,' and who has crushed under the foot of her virtue the head of the old serpent, who, 'placed between Christ and his church' and altogether great and full of graces, has always rescued the Christian people from the greatest calamities whatsoever, and from the snares and assaults of all enemies, and has saved them from perishing, commisserating with that most ample affection of her maternal mind, with which she is accustomed, our most sad and mournful vicissitudes and most bitter necessities, labours, and distresses, will be willing, with her most present, and also her most powerful patronage with God, to turn away the scourge of divine anger with which we are afflicted on account of our sins, and to restrain and dissipate the most turbulent storms of evils by which, with incredible grief to our mind, the Church is everywhere tossed, and to convert our grief into joy. For you know full well, venerable brethren, that all ground of our confidence is placed in the most holy Virgin, since God 'has placed the fulness of all good in Mary, so that, if there be any hope in us, if any grace, if any salvation, we may know that it flows from her . . . because such is the will of him who wills that we should have all through Mary.'

"Hence, we have chosen some ecclesiastical men, distinguished for their piety, and well versed in theological study, and some of our venerable brethren, cardinals of the Roman Church, illustrious for their virtue, religion, counsel, prudence, and knowledge of divine things, and we have committed to them that, according to their prudence and learning, they should take care to examine on every side this most grave subject, and then report to us their opinion with all diligence. But while the matter stands in this position, we have resolved to follow the illustrious footsteps of our predecessors, and to emulate their example.

"Wherefore, we write these letters to you, venerable brethren, in which we by all means excite your distinguished piety and episcopal care; and again and again, we enjoin you, that each of you, according to his judgment and prudence, will take care that public prayers should be appointed and performed in his own diocess, by which means the most merciful Father of lights may think fit to pour out upon us of the heavenly light of his Divine Spirit, to breathe on us of his inspiration, that in matter of so great importance, we may be able to embrace that counsel which may pertain as well to the greater glory of his holy name, as to the greater praise of the most Blessed Virgin, as well as to the greater good of the Church militant. But we earnestly desire, that with the greatest speed with which it can be done, you will signify to us with what devotion your clergy AND FAITHFUL PEOPLE are animated towards the conception of the immaculate Virgin, and with what desire they are inflamed, that a matter of this kind should be determined by the Holy See; and especially we desire to know what you, yourselves, venerable brethren, think of this matter, according to your distinguished wisdom, and what you wish. And, since we have now conceded to the Roman clergy, that they may be able to recite the proper canonical hours of the conception of the most Blessed Virgin, recently composed and published, in place of that which is contained in the ordinary Breviary: therefore, by these letters, we give you power, venerable brethren, that, if it so please you, the whole clergy of your diocess may be able, freely and carefully, to use those canonical hours of the conception of the most holy Virgin, which the Roman clergy now uses, without your being obliged to ask liberty from us, or our Congregation of Sacred Rites.

"We do not doubt, venerable brethren, but that, according to your singular piety towards the most holy Virgin Mary, you will rejoice to comply with these our desires, with all care and zeal, and that you will hasten to give us the speedy reply which we ask of you. In the meanwhile receive, as a pledge of all heavenly gifts, and especially of our benevolence towards you, the apostolic benediction, which, from the bottom of our heart, we bestow on you, venerable brethren, and on all the clergy and faithful people committed to your care.

"Given at Cajeta, this second day of February, in the year 1849, the third year of our Pontificate."

We place this letter on record in our pages, with a deepening sense of the responsibility of our undertaking. We feel that there is a contrast, a painful one, between this letter and all those letters which the Apostles wrote to the Churches. We are aware that many Roman Catholics deny that they worship the Blessed Virgin. We believe that such persons must feel hurt or shocked at hearing the head of the Roman Church avow, that his FIRST object is to promote *her* worship. One object, at least, might stand before it—namely, to promote and extend the worship of the Lord himself. We painfully feel the total omission of the name of Christ from this important letter, except in one place, which only makes the omission more striking.

These thoughts, we believe, will find a place in the minds of many Roman Catholics, jealous as all men ought to be for the honour and the purity of their Church.

But we cannot shut our eyes to the existence of this letter; and considered it must be. We shall return to it again, and we invite our readers to preserve this number of THE LAYMAN, that they may be able to refer to the Pope's letter when necessary.

TO CORRESPONDENTS.

All letters to be addressed to the Editor, 9, Upper Sackville-street.

No anonymous letter can be attended to. Whatever is sent for insertion must be authenticated by the name and address of the writer, not necessarily for publication, but as a guarantee for his good faith.

As the expense of the publication is necessarily heavy, prompt Subscriptions are earnestly solicited.

The press of important matter in this opening number has obliged us, reluctantly, from want of space, to omit several highly interesting contributions of a lively character, which we hope, however, to be able to lay before our readers in our next number.

Contributors will be good enough not to consider that their communications have been disapproved of, or will not be ultimately inserted, because they do not appear immediately in our pages. The nature of our undertaking will afford an obvious explanation why delay may, sometimes, be unavoidable.

The Catholic Layman.

DUBLIN, SATURDAY, JANUARY 17, 1852.

THE time is come when the *laity* must *think* more than they have done. For good, or for evil—whether they wish it, or whether they do not—it is inevitable that the laity *must think*, and think deeply.

Many causes unite to create this necessity of thinking.

The National and other Schools of Ireland are now educating the people to exercise their minds. Formerly, to read and write was education; but *now* "education" is *to acquire a power of thinking.*

The Queen's Colleges are opening out to the middle classes a new field of intellectual education, with all the advantages that attend on intellectual power.

And if Irishmen now possess the means of attaining to the great source of all human power—the power of a rational mind—they are also under a necessity which impels them to attain to it. True-hearted Irishmen have before them a mighty task. They have to raise a prostrate country. No people have ever done this without exercising and cultivating the power of thought; for the mind is the source of man's power over the material world. To accomplish their great task, Irishmen must and will become energetic in *thought and action.* This has ever been the source and the instrument of national prosperity. Men who do not think, will not act effectively; men of action are ever men of thought.

It is the most striking character of human thought, that when once aroused to activity it grasps the greatest and noblest objects; as it ascends, it sees still greater objects arise before it, and it grasps them too. The things relating to the immortal spirit, which man feels within him: his present and his future intercourse with God; this is the highest aim of human thought. When once awakened to activity, it will, it must proceed to this great end. The spirit *must* return to God who gave it, and it will aim at understanding him, and the way to find him. Those who learn to think will, therefore, find themselves thinking about religion.

This consequence of learning to think is not a future thing; it is present with us now.

We see what numbers on both sides have changed their religion. Now, it is not every one who thinks about religion, that goes on to change it. Such multitudes of *changers* in religion do, therefore, prove that there are vast multitudes who are thinking about religion; and who can help thinking about it, when he considers all this? This is the state of things; we have not made it; we only seek to meet it.

We believe that this state of things, if it be full of hope, is also full of danger. It is no light thing for a man to begin to think about doctrines which he has formerly held without thought. On the one hand, we may hope much if he think about it rightly; we may hope that, as he understands religion more, he will practise it better. If religion be true, the more we examine it, the more firmly he will believe it, the more earnestly he will practise it. And this holds out a hope, not only for the man, but for Ireland. Drunkards, swearers, thieves, idlers, are curses to Ireland, and will never help to raise her. Religion teaches men to be sober, honest, industrious; these men are the strength of a nation. And they have a promise from God, for "Godliness is profitable to all things, *having promise of the life* THAT NOW IS, and of that which is to come. A faithful saying, and worthy of acceptation." Let Ireland but lay hold on this promise in her hour of need, and her mourning will be turned into joy.

On the other hand, to think rashly or wrongly endangers faith, and may lead to infidelity.

Our object is to aid the laity in regulating and controlling that thinking about religion which is now inevitable—which is actually going on this moment; to suggest right methods of thinking, and to supply sound materials.

It is not our object to usurp, or to interfere with the office of the clergy. We reverence that office as an institution of God. But if the laity do learn to think at all (and who will say that the laity should be irrational creatures?) the laity must also learn to regulate and control their thoughts. The clergy cannot do this for the laity, any more than they can think for the laity. God did not make the laity for the clergy, but he made the clergy for the laity; and this must never be forgotten, in considering the relation in which they stand to each other. The clergy have an important office to instruct the laity; but the time is past when the clergy can